



CHAPTER xlvii.

An Act to authorise the transfer to the Metropolitan A.D. 1911.
Electric Supply Company Limited of the Electrical
Undertaking of the Urban District Council of Acton
and for other purposes. [29th June 1911.]

WHEREAS in the year one thousand eight hundred and eighty-seven a company was formed under the name of "the South Metropolitan Electric Supply Company Limited" with the objects (inter alia) of the production transmission storage and use by any means and for any purpose of light and heat and electric magnetic or other force and of acquiring land and buildings for any purpose of the Company and the said company was duly registered under the Acts relating to limited companies and the name of the said company was subsequently changed to that of "the Metropolitan Electric Supply Company Limited" who are hereinafter referred to as "the Company":

And whereas by the Acton Electric Lighting Order 1891 54 Vict. c. lii. confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1891 the Acton Urban District Council (hereinafter called "the council") are the undertakers in and for the area of supply mentioned in the said Order being the whole of the Acton Local Board District as constituted at the date of the passing of the said Act and now comprising the whole of the urban district of Acton:

And whereas by the Metropolitan Electric Supply Company 5 Edw. 7.
(Various Powers) Act 1905 the Company were authorised to sell c. cc.
and transmit electrical energy to authorised distributors within
among other areas the urban district of Acton:

[Ch. xlvii.] *Metropolitan Electric Supply* [1 & 2 GEO. 5.]
Company. (Acton District) Act, 1911.

A.D. 1911.
5 Edw. 7.
c. cxlvi.

And whereas the Metropolitan Electric Supply (Acton District) Act 1905 after reciting the existence of an agreement (which agreement is dated the twentieth day of February one thousand nine hundred and four and is made between the Company of the one part and the council of the other part) for the supply of energy by the Company to the council empowered the Company to enter into and carry into effect agreements with the council with respect to the supply of energy by the Company to the council and the Company are now supplying electrical energy in bulk to the council for the purposes of the undertaking of the council authorised by the Order of 1891 in accordance with the said agreement and Act:

6 Edw. 7.
c. cciv.

And whereas by the Metropolitan Electric Supply Company Act 1906 power was given to the Company to acquire from any undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888 should have been or might thereafter be granted relating to a district wholly within the district of the Company the undertaking authorised by such Provisional Order but such powers did not extend to the urban district of Acton:

And whereas it has been agreed by and between the Company and the council that the Company should take over and carry on the undertaking of the council as authorised by the said Order of 1891 upon the terms and subject to the conditions of the agreement set forth in the schedule to this Act and it is expedient that the said agreement should be confirmed and made binding upon the parties thereto and that the council should be authorised to transfer to the Company and that the Company should be authorised to take over and carry on the undertaking of the council upon the terms of such agreement:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Metropolitan Electric Supply Company (Acton District) Act 1911.

[1 & 2 GEO. 5.] *Metropolitan Electric Supply* [Ch. xlvii.]
Company (Acton District) Act, 1911.

2.--(1) The agreement made the twenty-second day of November one thousand nine hundred and ten between the council of the one part and the Company of the other part as set forth in the schedule hereto is hereby confirmed and made binding upon the parties thereto and the transfer therein mentioned shall take effect and the undertaking therein mentioned shall subject to the provisions of the said agreement and in all respects in accordance with the terms and conditions thereof be transferred to the Company by virtue of this Act and without any conveyance or other instrument and the Company may continue maintain and carry on the undertaking of the council.

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Confirma-
tion of
agreement.

(2) From and after the passing of this Act but subject to the provisions of the said agreement the provisions of the Electric Lighting (Clauses) Act 1899 shall be deemed to extend and apply to the said undertaking in lieu of the provisions of the Acton Electric Lighting Order 1891 and the Company shall for the purposes of that Act be deemed to be the undertakers provided that the prices to be charged for energy supplied by them shall not exceed those specified in the schedule to the said Order.

3. All moneys received by the council from the Company under the said agreement by way of repayment to the council of interest and sinking fund or redemption charges paid by them shall be carried to the credit of the fund or rate out of which such interest and sinking fund or redemption charges shall have been paid and all other moneys received by the council under the said agreement shall be carried to the credit of the general district fund.

Application
of moneys by
Council.

4. The receipt of the council shall be a sufficient discharge to the Company for any moneys paid by the Company to the council under or in pursuance of the provisions of the said agreement and the Company shall not be concerned with the application nor shall they be liable in respect of any non-application or misapplication of any money so paid.

Receipt of
council to be
discharge to
Company.

5. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day

Copy of
Act to be
registered.

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A.D. 1911. after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association.

Provision as
to general
Acts.

6. Nothing in this Act shall be deemed to exempt the Company or their undertaking from the provisions of or deprive the Company of the benefits of any general Act relating to electricity or to the supply of or price to be charged for energy which may be passed after the commencement of this Act.

Costs of Act.

7. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto (including the costs charges and expenses of the council referred to in Article 15 of the said agreement) shall be borne and paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1911.

MEMORANDUM OF AGREEMENT made the twenty-second day of November one thousand nine hundred and ten between the URBAN DISTRICT COUNCIL OF ACTON in the county of Middlesex (hereinafter called "the council") of the one part and the METROPOLITAN ELECTRIC SUPPLY COMPANY LIMITED whose registered office is at No. 16 Stratford Place in the county of London (hereinafter called "the Company") of the other part.

Stamp.

Ten
shillings.

WHEREAS by the Acton Electric Lighting Order 1891 (hereinafter called "the Order") scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1891 the Council are the undertakers for the purposes of such Order and are empowered to supply electrical energy within the area of supply mentioned in that Order such area of supply being the whole of the Acton Local Board District as the same was constituted at the date of the passing of the Act confirming the Order such district being now known as the urban district of Acton in the county of Middlesex:

And whereas by Part II. of the Acton Improvement Act 1904 further provisions were made with reference to the supply of electricity by the council of such urban district:

And whereas by the Metropolitan Electric Supply Company (Acton District) Act 1905 the Company are authorised to enter into and carry into effect agreements with the council with respect to the supply of energy by the Company to the council and for any purposes for which the council may have power to use or supply such energy and with respect to the matters specified in the said Act:

And whereas the Company are supplying energy to the council under an agreement bearing date the twentieth day of February one thousand nine hundred and four for the termination of which agreement the council have served notice upon the Company:

And whereas the council have agreed to transfer their electrical undertaking to the Company and the Company have agreed to take over and work the same for the consideration and upon and subject to the terms and conditions hereinafter set forth:

And whereas the said transfer cannot be effected without the authority of Parliament:

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Company (Acton District) Act, 1911.

A.D. 1911. Now it is hereby agreed and declared by and between the parties hereto as follows (namely):—

1. The council shall transfer and the Company shall take over as from the thirty-first day of March one thousand nine hundred and eleven upon and subject to the conditions of the Electric Lighting Acts 1882 and 1888 and subject also to the provisions of section 12 of the Metropolitan Electric Supply Company Act 1906 with respect to the application to the Company of the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 so far as the said Acts and section are applicable to and not inconsistent with the terms of this agreement or the Act confirming the same. All that the electrical undertaking of the council and the rights powers and privileges of the council as undertakers under the Order together with all buildings works plant and machinery used in or in connection with the electrical undertaking of the council and all the property of the council in relation to that undertaking (except only the lands of the council upon which the existing buildings of the council are erected) all which are hereinafter included in the expression "the undertaking" in consideration of the sum of £5,000 to be paid and satisfied as hereinafter provided and of the further sums to be paid by the Company to the council as hereinafter provided and in consideration of the terms and conditions of this agreement and the Company shall also take over at a valuation and pay for all the stores and other floating assets used in and necessary for the working of the undertaking. For the purposes of this agreement "the Order" shall be deemed to include so far as applicable to the Company and without prejudice to any of the existing rights powers or privileges of the Company the provisions of Part II. Electricity of the Acton Improvement Act 1904 with the exception of the provisions relative to the annual statement of accounts contained in section 10 of that Act.

2. The council shall grant to the Company a lease for the term of forty-two years as from the thirty-first day of March one thousand nine hundred and eleven of the lands upon which the existing buildings of the council used exclusively for the purposes of the supply of electricity are erected at such rental and upon such covenants terms and conditions as may be agreed upon between the council and the Company or in default of agreement as may be settled by two valuers one to be appointed by the Company and the other by the council or by an umpire to be appointed by such valuers in the case of disagreement between them and the expenses of the reference to such valuers shall be paid either by the Company or by the council or partly by the Company and partly by the council as such valuers or their umpire (as the case may be) shall determine. The Company shall upon the execution of such lease take over and pay for all the stores and other floating

assets upon the said lands buildings and works of the nature generally A.D. 1911.
used in and necessary for the working of the undertaking upon a
valuation to be ascertained by two independent valuers or by an umpire
in manner hereinbefore provided.

3. The Company shall upon the sealing of this agreement deposit
at the London and South Western Bank (Acton Branch) and in the joint
names of a representative of the Company and of the clerk to the
council the sum of £2,500 (being one half of the said amount of £5,000)
which sum shall be paid out to the Council at the expiration of one
month from the date when the Act to be obtained as hereinafter
mentioned shall have received the Royal Assent and if the Bill for
the said Act shall for any reason fail to receive the Royal Assent
shall be paid out to the Company but all interest accrued or payable
on the said sum so deposited as aforesaid shall be paid over to the
council in any event.

4. The balance of the said sum of £5,000 shall be satisfied by
the payment annually during the month of January in each year to
the council by the Company of one half of any sum by which the net
receipts of the undertaking for the preceding year ending on the
thirty-first day of December shall exceed an amount equivalent to six
and a half per centum per annum upon the total capital expenditure
upon the undertaking exclusive of the amount of any loan or loans to
the council which shall have been wholly repaid until the total
payments by the Company to the council under this provision shall
have amounted to £2,500 being the balance of the said amount
of £5,000.

For the purposes of this provision the term "net receipts" shall
be deemed to be the gross receipts of the undertaking after deducting
(a) for the cost of producing the energy an amount calculated at the
rate of five pounds per kilowatt of maximum load and one third of a
penny per unit and (b) all local expenses incurred in carrying on the
said undertaking exclusive of interest and sinking fund or redemption
charges on loans. If any difference shall at any time arise as to what
sums have been or are to be regarded as "capital expenditure"
within the meaning of this clause such difference shall be forthwith
referred to the decision of two competent persons one to be appointed
by the council and the other by the Company or to an umpire to be
chosen by such persons before entering upon the consideration of the
matters referred to them.

5. The Company shall as from the thirty-first day of March one
thousand nine hundred and eleven also pay to the council on demand
as and when they fall due from and are payable by the council such
sums as shall from time to time be required to meet the annual
interest and sinking fund or redemption charges upon the loans to the

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A.D. 1911. council outstanding at the date hereof and incurred for or in connection with the undertaking until such loans shall have been repaid but such loans shall not (subject as is hereinafter provided) be deemed to include such proportion of the said loans as is charged upon the undertaking for or in respect of the provision of street lighting within the district. All sums payable by the Company under this and the next following clause shall constitute and be a first charge upon the undertaking.

6. The Company shall also in like manner pay the interest and sinking fund or redemption charges upon such proportion of any loans made to the council and which shall be outstanding at the date hereof as shall have been used or applied for or in connection with the street lighting in the district but this obligation shall continue only so long as the council take from the Company and pay for a supply of energy for purposes of street lighting not less than that supplied for that purpose during the year ending thirtieth day of June one thousand nine hundred and ten. The Company shall supply electric energy for street lighting purposes at a fixed price and shall include therein the cost of maintenance of posts and lamps and the supply of current and carbons. The price to be paid for and the terms and conditions of such supply shall be such as may be mutually agreed upon or in default of agreement between the council and the Company shall be such as may be determined by a single arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

7. The Company will not during a period of seven years from the date of the transfer to them by the council of the said undertaking vary so as to increase the charges to be made for the supply of electrical energy in the district above the scale of charges fixed by the council and in force on June thirtieth one thousand nine hundred and ten a copy of which is set out in the schedule hereto but such obligation shall continue only so long as no unforeseen change occurs either in the conditions of manufacture or user of electrical energy which renders such scale of charges less remunerative than would have been the case if such change had not occurred. If any question shall arise as to what shall constitute such change as aforesaid or as to the nature and extent of any alteration made or proposed to be made in such scale of charges such dispute shall be determined by a single arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

8. The Company shall be entitled to the full benefit and shall be subject to all the obligations imposed upon the undertakers by the Order and in all respects as though the Company had been named therein as undertakers and the Company shall indemnify the council from and against all obligations liabilities penalties claims and demands

imposed upon the council or to which they have been are or may be subject under or by virtue of the Order but this indemnity shall not extend to any act neglect or default of the council before the transfer of the undertaking. A.D. 1911.

9. Separate accounts shall as far as practicable be kept by the Company of all transactions and of all receipts and payments in relation to the undertaking the subject matter of this agreement and of the ordinary rates and scale prices of electricity charged from time to time and such accounts shall if required by notice in writing be produced to the duly authorised officer of the council as soon as may be after the thirty-first day of December in each year.

10. The Company shall at their own expense make application to Parliament in the ensuing session for and use their best endeavours to obtain an Act the draft of which shall be approved by the council before the same shall be deposited such Act to provide for the confirmation of this agreement and for all necessary powers both to the council and to the Company to give effect to this agreement and the council shall at the cost of the Company support such application by the Company and use their best endeavours to obtain its passage through Parliament.

The said Act shall provide and this agreement is made upon the express condition that the council shall have the right to repurchase the undertaking from the Company at the expiration of forty-two years from the thirty-first day of March one thousand nine hundred and eleven and that such repurchase shall be deemed to be a purchase of the undertaking by the local authority under the provisions of the Electric Lighting Acts 1882 and 1888 or any statutory modification thereof then in force subject however to the council giving to the Company three years' previous notice in writing of their intention to exercise the powers of the said Acts in lieu of giving to the Company the notice required to be given by section 2 of the Electric Lighting Act 1888.

11. If during the currency of any such notice as last aforesaid any additional capital is required by the Company for the purpose of properly carrying on the undertaking such capital shall if the Company so require be provided by the council and the Company shall repay to the council the interest and sinking fund or redemption charges on such capital incurred by the council from the date when they shall have provided the same until the date when they shall purchase the undertaking in accordance with the provisions of the last preceding article of this agreement and until repayment the said sums whether for interest or sinking fund or redemption charges shall be a first charge upon the undertaking.

12. The council agree to withhold their assent to any application by parties seeking powers competitive with those hereby agreed to be transferred to the Company and to use their best endeavours to secure the

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A.D. 1911. rejection of such application all costs of and incident thereto to be paid and borne by the Company upon demand The council further agrees that the notice recently served by them upon the Company for terminating the existing agreement for supply of electrical energy by the Company to the council shall be extended and the Company shall continue to supply energy in bulk to the council until the thirtieth day of June one thousand nine hundred and eleven and for such further period as may be necessary to pass the said Bill in the session of 1911. Provided that in the event of the Bill failing to receive the Royal Assent the existing agreement shall terminate at the expiration of three years from the thirtieth day of June one thousand nine hundred and eleven or from any subsequent date in that year on which the Bill for the said Act shall be rejected or withdrawn.

13. This agreement shall be deemed to be a submission within the meaning of the Arbitration Act 1889 of the various matters hereinbefore agreed for determination by arbitration in the event of difference between the parties hereto but such submission shall be revocable by agreement.

14. This agreement is made subject to the sanction of Parliament and is subject to such alterations as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in this agreement it shall be competent either to the Company or the council to withdraw from the same.

15. All professional costs charges and expenses of the council preliminary or incidental to the preparation of this agreement and of the draft Bill or otherwise in relation thereto shall be borne and paid by the Company.

In witness whereof the respective common seals of the council and the Company were hereunto affixed the day and year first above written.

The SCHEDULE before referred to.

PRICES FOR LIGHTING.

7d. per unit to consumers on free wiring installations.

6d. per unit to private consumers.

5d. per unit to shopkeepers.

Meter rents are charged at the following rates based upon the number of 8-c.p. lamps installed or the equivalent thereof (viz.):—

	s.	d.	
Up to 10—8-c.p. lamps - - -	1	3	per quarter
From 11 to 25—8-c.p. lamps - - -	1	6	„
From 26 to 45—8-c.p. lamps - - -	2	0	„
From 46 to 65—8-c.p. lamps - - -	2	6	„
Exceeding 65—8-c.p. lamps - - -	3	0	„

[1 & 2 GEO. 5.] *Metropolitan Electric Supply* [Ch. xlvii.]
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PRICES FOR POWER.

A.D. 1911.

(1) A maximum demand rate of $2\frac{1}{2}d.$ per unit for one hour's consumption per day and $1d.$ per unit after the first hour's consumption.

(2) A flat rate of $1\frac{3}{4}d.$ per unit.

Meter rents are charged at half above rates with a maximum of $3s.$ per quarter for specially large power meters.

PRICE FOR HEATING.

A flat rate of $1\frac{3}{4}d.$ per unit.

Meter rents are charged at half the above rates.

SPECIAL CONTRACTS.

Rates as therein respectively provided.

The common seal of the urban district council of Acton }
was hereto affixed in the presence of

Seal.

H. S. SCHULTESS YOUNG Chairman.

WM. HODSON Clerk to the Council.

The common seal of the Metropolitan Electric Supply }
Company Limited was hereunto affixed in the presence
of

Seal.

W. HARRISON CRIPPS Director.

E. CUNLIFFE OWEN Secretary.

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